

TENTATIVE RULING

Case: **Mallari v. Fowler**
 Case No. CV2024-2282

Hearing Date: **March 12, 2026** **Department Fourteen** **9:00 a.m.**

Motion to withdraw deemed admissions:

Plaintiff Jerilyn Mallari's motion to withdraw deemed admissions is **DENIED**. (Code Civ. Proc., § 2033.300.) Plaintiff fails to show that her failure to respond to defendant Taylor Fowler's request for admissions of fact was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.300, subd. (b); see *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; *Stover v. Bruntz* (2016) 12 Cal.App.5th 19, 31; Mallari Decl., ¶¶ 2, 3.)

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for summary judgment:

Defendant Taylor Fowler's request for judicial notice is **GRANTED** (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion for summary judgment, or in the alternative, summary adjudication on complaint of plaintiff Jerilyn Mallari is **DENIED**. (Code Civ. Proc., § 437c.) Defendant failed to file a memorandum of points and authorities in support of the motion with the Court as required. (Cal. Rules of Court, rule 3.1350(c)(3).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vorhees v. Elfen**
Case No. CV2024-2427

Hearing Date: **March 12, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff James Vorhees unopposed motion to set aside void default and default judgment for defendant is **DENIED**. (Code Civ. Proc., § 473, subd. (d).)

Plaintiff failed to file with the Court a proof of service of this motion on defendant Kristie Lynn Elfen. (Cal. Rules of Court, rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].) Furthermore, there is no default or default judgment entered against plaintiff in this action; thus, plaintiff fails to provide any legal authority upon which the Court may grant the relief requested. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.